

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: , 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25PR199964	<i>Kais Bypass Trust</i>	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2			
LINE 3			
LINE 4			

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INTRODUCTION

Petitioners Deborah Settlemayer and Samuel M. Kais (“Petitioners”) bring the present application for appointment of limited guardian ad litem for Maria D. Kais (“Maria”).¹ Through their August 27, 2026 application, Petitioners seek appointment of Matthew B. Talbot, Esq. of Talbot Law Group, P.C. solely to represent Maria’s interests at the court-ordered *Breslin*² mediation and evaluation of any settlement, compromise, or release that would bind Maria. (Application, pp. 1:4-6, 7:8-20.) Maria filed a late opposition on September 14, 2026, contending that she has adequate representation of her interest, and if a guardian ad litem must be appointed, that Connie Ajlouni (“Connie”), whom Maria has appointed as attorney-in-fact, would be appropriate. (Maria’s Opp., pp. 4:14-5:17, 6:19-22.)

Connie also filed an opposition, largely adopting the arguments raised in Maria’s opposition before supplementing with additional arguments. Connie’s opposition, however, was filed exceedingly late on September 21, 2026, after the Petitioners timely filed their reply on September 17, 2026. (See Code Civ. Proc., § 1005, subd. (b) [requiring oppositions to be filed at least nine court days before the hearing].) Connie provides no explanation for the late filing. That said, given the competing interests and Petitioners’ ability to file a responsive sur-reply on September 21, 2026, the court will consider the opposition.

DISCUSSION

I. Legal Standard

Probate Code section 1003, subdivision (a) permits appointment of a guardian ad litem “at any stage of a proceeding” to represent the interest of a person “if the court determines that representation of the interest otherwise would be adequate[.]” Thus, the court may appoint a guardian ad litem where the individual “lacks legal capacity to make decisions.” (Prob. Code, § 1003, subd. (a)(2).)

The statute is discretionary, and such discretion is guided by the court’s determination of the adequacy of the representation in the absence of a guardian ad litem. (*Chui v. Chui* (2022) 75 Cal.App.5th 873, 898 (*Chui*).) The court also determines the reasonable expenses of the guardian ad litem and whether the expenses are paid out of the property of the estate, by the petitioner, or any other source. (Prob. Code, § 1003, subd. (c).)

¹ Because some parties to this action share the same surname, the court refers to them the by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

² *Breslin v. Breslin* (2021) 62 Cal.App.5th 801.

II. Analysis

Petitioners seek the appointment of a guardian ad litem for Maria solely to represent her interests at the court-ordered *Breslin* mediation and in the evaluation and recommendation of any binding settlement, compromise, or release. (Application, p. 1:4-6.) Petitioners assert that appointment is proper because Maria lacks independent representation given her health and the conflict with her attorney-in-fact, Connie.

Maria's capacity is presently disputed, but Petitioners' evidence is insufficient to support a determination that Maria lacks legal capacity to participate in the mediation.³ On the one hand, during the August 24, 2026 status hearing, Maria's counsel stated that he had not spoken with his client and would do so only "if feasible." Connie's counsel also stated that, according to Connie, Maria was on hospice, with the expectation that she would remain lucid for about a week but would pass shortly thereafter. On the other hand, counsel for Maria, Richard Gorini ("Gorini"), stated in his supporting declaration that during a September 3, 2026 home visit, "Maria presented with good color and was absolutely clear-minded", though "physically, Maria appeared weak[.]" (Gorini Decl., ¶ 1.) Gorini further attested that during this visit, "Maria was clear that she only wanted Connie to speak and act for her." (*Id.* at ¶ 2.) Gorini also noted in an email dated September 11, 2026, that, "given Maria's age and medical history, her condition could suddenly change and deteriorate" but concluded that "Maria currently could participate in a mediation personally, but only for a period of about 2 hours." (Samuel Decl., Ex. A, p. 3.)

Although Petitioners complain that they have not received a medical record or statement reflecting Maria's current medical state (Samuel Decl., ¶ 3, 6), the record does not reflect that Petitioners have made such a request through informal communications, motion practice, or otherwise. At most, Petitioners attempted to visit Maria, but were told she did not wish to see them. (*Id.* at ¶ 4.) Petitioners, as the moving party, have the burden of establishing the threshold issue of Maria's lack of legal capacity. On this record, Petitioners have not met that burden, and thus, the court is unable to make a determination that Maria's representation is inadequate. (Prob. Code, § 1003, subd. (a); *Chui, supra*, 75 Cal.App.5th at p. 898.) Petitioners' application is therefore DENIED WITHOUT PREJUDICE.

Should Maria become incapacitated at a later date, the court is concerned about Connie's conflict of interest notwithstanding her status as Maria's attorney-in-fact pursuant to the contested durable power of attorney. In particular, the court finds problematic certain allegations of the operative fourth amended petition ("4AP"), including that: (1) Connie participated in the below market value transfer of the Tahoe Property to Thomas Kais ("Tom") and his girlfriend; (2) Connie and Tom opened and controlled personal accounts that received

³ Indeed, Petitioners provided no supporting declaration or evidence in their moving papers. Petitioners primarily rely on the representations made in the August 24, 2026 hearing and attorney argument based on inferences made from facts and evidence not in the record. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 767, fn. 8 ["It goes without saying that statements in a memorandum of points and authorities are not evidence."])

the net sale proceeds; (3) Connie and Tom used those accounts to misdirect sale proceeds from the Bypass Trust; and (4) Tom and Connie took Maria to Gorini, who was convinced to preside over the beneficiary auction for the Tahoe Property, and together, Tom, Connie, and Gorini drove the Tahoe Sale Process. (4AP, ¶¶ 3, 12, 14, 22.)⁴ Moreover, Petitioners currently seek leave to amend the petition to add Connie as a respondent.⁵ While Maria and Connie may be aligned in defending the propriety of a transaction—which Petitioners dispute—Connie’s ability to release any claims Maria may have against Connie for that same transaction appears to pose a conflict of interest. Thus, without deciding on the validity of the DPOA, the court would consider a guardian ad litem, other than Connie, if Petitioners adequately demonstrate Maria’s lack of legal capacity in any subsequent application for guardian ad litem.

CONCLUSION

Petitioners’ application for appointment of guardian ad litem is DENIED WITHOUT PREJUDICE.

Maria’s alternative request to appoint Connie Aljouni as guardian ad litem is DENIED AS MOOT.

⁴ The court takes judicial notice of the record in this action on its own motion. (Evid. Code, § 452, subd. (d).)

⁵ The motion for leave to amend is set to be heard on October 8, 2026. (Evid. Code, § 452, subd. (d).)